

25STCP03364 25STCP03364

County: los-angeles

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Case Number: 25STCP03364 Hearing Date: July 22, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 22, 2026

CASE NUMBER

25STCP03364

MOTION

Special Motion to Strike

MOVING PARTY

Defendant Tao He

OPPOSING PARTY

Plaintiff Changxi Chen

MOTION

Plaintiff Changxi

Chen ("Plaintiff") asserts a cause of action for invasion of privacy in the operative first amended complaint against Defendant Tae He ("Defendant"). Defendant moves to strike the cause of action. Plaintiff opposes the motion.

ANALYSIS

In ruling on a defendant's special motion to strike, the trial court uses a two-step process. First, the defendant must show the act or acts of which the plaintiff complains were taken in furtherance of the defendant's right of petition or free speech under the United States or California Constitutions in connection with a public issue. (Code Civ. Proc., § 425.16, subd. (b)(1).) If the defendant carries that burden, the burden shifts to the plaintiff to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16, subd. (b)(3).)

In the instant case, Plaintiff alleges Defendant used Plaintiff's residential address in the Statement of Information for CT Supplies Trading Inc. ("CT Supplies") as the address associated with CT Supplies. (First Amended Complaint, ¶ 12.) Plaintiff further alleges he did not authorize or consent to this use of his residential address. (Id., ¶ 42.)

Defendant argues these allegations "arise[] from Defendant's act of filing a Statement of Information with the California Secretary of State, which constitutes protected activity under CCP §425.16(e)(1), (e)(2), and (e)(4)." (Defendant's Notice of Motion, p. 2.) The Court disagrees.

Pursuant to *Li v. Jin* (2022) 83 Cal.App.5th 481, corporate filings with the Secretary of State, which do not require agency approval, are not statements made in connection with executive review for purposes of the special motion to strike framework. (See *id.*, at pp. 494-495 [neither filing of articles of incorporation nor a statement of information with the California Secretary of State "qualif[ies] for protection under section 425.16, subdivision (e)(1) and (2), because they are not writings made before

or in connection with an official proceeding"].) Likewise, Plaintiff's residential address is not a public issue, such that the filing of the Statement of Information constitutes conduct in furtherance of free speech on an issue of public interest. (See Code Civ. Proc., § 425.16, subd. (e)(4).)

Accordingly, the motion is denied.

Defendant is ordered to provide notice of the Court's ruling and to file proof of service of same.